Tentative Rulings for August 19, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) ***The above rule also applies to cases listed in this "must appear" section.***

25CECG02066	***Mendez v. Muller***

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG05990	***Natalie Morgan v. FCA US LLC*** **is continued to Wednesday, September 16, 2026, at 3:30 p.m. in Department 501.**
25CECG00846	***Rozanne Hernandez v. State Center Community College District*** **is continued to Thursday, August 20, 2026, at 3:30 p.m. in Department 501.**

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 501

Begin at the next page

(46)

Tentative Ruling

Re: ***Aurelia Sargent v. Jessica Martinez***
Superior Court Case No. 25CECG03825

Hearing Date: August 19, 2026 (Dept. 501)

Motion: by Plaintiff to Change Venue

Tentative Ruling:

To grant.

Explanation:

The proper court for a personal injury action is the superior court in either the county where the injury occurred or the county where at least some of the defendants reside at the commencement of the action. (Code Civ. Proc., § 395, subd. (a).) If it appears the court where the action is commenced is not the proper court, the action shall be transferred to the proper court. (Code Civ. Proc., § 396a, subds. (b) and (e); see also Code Civ. Proc., § 397, subd. (a) [permissive].)

The injury central to the Complaint in the present action occurred in Manteca, California, which is located in San Joaquin County. (Compl., ¶¶ GN-1, Prem.L-1.) Both Plaintiff and Defendant are aware that the proper venue for this matter should be the superior court in San Joaquin County. (Matin Decl., ¶¶ 2, 4.) Defendant does not oppose this motion. The court intends to grant the motion.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: KCK on 08/17/26 .
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Hull, et al. v. General Motors LLC, et al.***
Superior Court Case No. 25CECG01860

Hearing Date: August 19, 2026 (Dept. 501)

Motion: by Plaintiffs for Attorney Fees and Costs

Tentative Ruling:

To grant the motion for an award for attorney fees and costs. To award $11,154 in fees and $1,329.44 in costs in favor of plaintiffs Eric and Bianca Hull.

Explanation:

Plaintiffs move for an award of attorney fees and costs as the prevailing buyer under Civil Code section 1794, subdivision (d). Plaintiffs indicate that the parties have executed a Release and Settlement Agreement authorizing plaintiffs to seek fees and costs from defendant by noticed motion. Although plaintiffs suggest that the agreement is attached to counsel, Jorge Acosta's declaration, the court finds that no such exhibit is attached to the actual declaration. Nonetheless, since the opposition does not challenge these facts and the agreement is provided for the first time on reply, the court finds that plaintiffs have sufficiently stated a basis upon which to seek an award of fees and costs.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid*.) An award of costs must be "reasonably necessary to the conduct of the litigation" and per (c)(3), shall be "reasonable" in amount. (Code Civ. Proc. § 1033.5(c)(2).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Counsel for plaintiffs seek to set the lodestar at $16,395, which includes $2,887.50 or 5.5 hours sought in connection with anticipated time for the reply and hearing for the motion at bench. With the reply, counsel submits a supplemental declaration submitting the actual hours spent reviewing the opposition and drafting a reply and revising the related fees to $1,837.50 for 3.5 hours of work. (Urner Decl., Jun. 30, 2026, ¶ 4.) With the reply, counsel further revises the anticipated attorney fees for attending the hearing to $1,050 for 2 hours. (*Ibid*.)

Excluding the anticipated time, counsel submits a total of 38.5 hours of billed time across three timekeepers, including one paralegal. Counsel exclusively practices in consumer protection claims, such as the present action. (Acosta Decl., ¶¶ 1-5.) Counsel submits hourly rates of $450 for attorney, Jorge Acosta, $525 for attorney, Christopher Urner, and $250 for paralegal, Mary Zazueta.

Defendant challenges the rates as unreasonably high and asks the court to apply local market rates for a routine lemon law case. Defendant contends that the matter settled for $15,000 less than five months after the commencement of the action and the case did not involve any discovery, vehicle inspection or contested law and motion.

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses*, *supra*, 24 Cal.4th at p. 1133.) Ordinarily, "'the value of an attorney's time . . . is reflected in his normal billing rate.'" (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.) Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing…that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.) Plaintiffs have made no showing that local counsel practicing "Lemon Law" and Song-Beverly consumer litigation are not available. As a result, the court intends to award fees based on local rates.

Having reviewed the qualifications of each of the timekeepers, the court finds the reasonable value of services as follows:

$450 per hour for Mr. Urner, admitted to the California Bar in 2016,
$325 per hour for Mr. Acosta, admitted to the California Bar in 2023, and
$150 per hour for Ms. Zazueta, paralegal.

The opposition challenges several entries as excessive, clerical, or unreasonably incurred.

Following a review of the challenged entries submitted, the court finds that the time billed in connection with discovery requests to be unreasonable. Effective January 1, 2025, Code of Civil Procedure section 871.26 codified expectations for discovery timelines and procedures in civil actions seeking restitution or replacement of a motor vehicle. (Code Civ. Proc., § 871.26, subd. (l).) The complaint seeking restitution in this matter was filed April 22, 2025, after the enactment of this code section. Just as defendant contends, Code of Civil Procedure section 871.26, subdivision (e) stays all discovery until the conclusion of mediation with limited exception, i.e., the initial disclosures and initial depositions enumerated within the code section. Therefore, the time billed for preparing interrogatories, requests for admissions, and document requests is discounted by 2.3 hours.

The court finds that 18 entries for time billed for requesting documents from plaintiffs was clerical and reduces the time by 1.8 hours. Clerical tasks such as scanning, filing, formatting and calendaring will not be awarded as attorney fees, regardless of the qualifications of the person performing the task. (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288.)

While the court acknowledges defendant's argument that a multitude of plaintiff's pleadings, including the instant motion for fees are likely to be largely based on existing templates, defendant has provided no evidence for the court to evaluate the merit of this contention. Accordingly, the time for this challenge is not reduced.

The court does not find the time billed for reviewing client records to be excessive or duplicative. Further, the time spent on researching and drafting a memorandum on applicable recalls and TSB does not appear to be unreasonable. To the extent, that defendant argues that such information is produced in its initial disclosures, no evidence is provided to support such contention. The time billed for the mediation brief also does not appear excessive.

Lastly, the court need not address the challenge to anticipated fees, since counsel provides the necessary information on reply. The anticipated time for attending the hearing will not be awarded, unless a hearing becomes necessary.

After the discounted hours and rate reductions, the lodestar is reduced to $10,140.

Multiplier

Plaintiffs seek the imposition of a multiplier of 1.3. As stated by the California Supreme Court regarding lodestar multipliers, sometimes referred to as fee enhancements:

> …the trial court is *not required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof. In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*. We emphasize that when determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar. The factor of extraordinary skill, in particular, appears susceptible to improper double counting; for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a more skillful and

> experienced attorney will command a higher hourly rate. (*See Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004, 185 Cal.Rptr. 145.) Indeed, the " 'reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.' " (*Ibid*.) Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139 [emphasis original].)

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Id.* at p. 1132, *citing Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 49.)

Here, plaintiffs submit that counsel took the matter on contingency, and obtained an excellent result. The court acknowledges the contingent risk taken by counsel; however, plaintiffs fail to provide any evidence to show that the recovery of $15,000 was "excellent." Counsel does not suggest that time dedicated to this case precluded other employment. The court's docket does not reflect any law and motion work. The matter settled reasonably quickly following the commencement of the action. The court applies a modest multiplier of 1.1 reflecting the contingent nature of the fee award.

Therefore, the motion for an award of attorney fees is granted in the amount of $11,154.

<u>Costs</u>

Costs are sought via memorandum in the amount of $1,329.44.

If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (*Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338.) The losing party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence to prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) If the claimed items are not expressly allowed by statute and are objected to by a motion to tax costs, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

In Song-Beverly Act cases, Civil Code section 1794, subdivision (d), provides for an award of not only "costs", but also "expenses" to the prevailing buyer if the costs and expenses were reasonably incurred in the commencement and prosecution of the action. Courts have interpreted the term "expenses" to mean that the trial court has discretion to award more than just the costs provided under section 1033.5, and that the court may grant other costs that were reasonably incurred by the buyer in connection with the commencement and prosecution of the action. (*Jensen v. BMW of North America, Inc*. (1995) 35 Cal.App.4th 112, 137-138, [finding trial court should not have denied plaintiff's request for expert witness fees simply because they were not permitted under section 1033.5]; disapproved on other grounds by *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189.)

Defendant does not oppose the costs in its opposition. Nor is there a motion to strike or tax costs on the court's docket. Accordingly, costs are award in the total amount of $1,329.44.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: KCK on 08/17/26 .
(Judge's initials) (Date)